1. Definitions

This document shall define the general terms and conditions that shall apply to all consultancy agreements and retainer contracts involving Trevor Heaps Arboricultural Consultancy Ltd. (THAC Ltd.). These clauses shall be the basis of business in the absence of a signed written contract from the client. The Client is the party with whom the agreement to supply services exists.

2. Statement of Professional Standards

THAC Ltd. shall conduct its business in accordance with the professional standards laid down by the Code of Professional Conduct of the Institute of Directors. THAC Ltd. shall apply high standards of service to the client with independence, objectivity and integrity.

3. Performance

All commitments with respect to the timing and scope of a project given to the client by THAC Ltd., whether verbal or written, are made in good faith but are made necessarily in advance of knowing the full scope of the difficulty that may pertain to performance on specific points (for example, un-foreseeable difficulty in obtaining certain information requested by the client). For this reason, whilst THAC Ltd. agrees to use its best endeavours to fulfil such commitments to clients on the timing and the scope of consultancy and other projects we cannot guarantee performance in either respect.

4. Confidentiality

THAC Ltd. agrees to hold all information provided by the client confidential where the client so specifies, save where such information is known to THAC Ltd. already, or exists already in the public domain, until, either the information enters the public domain, or THAC Ltd. is given the same information by a third party, or is released from its confidentiality requirement by the client, or the client is found in breach of contract with THAC Ltd. by a court of law (including non-payment of account) or three years have elapsed, whichever is the sooner. The client agrees to hold confidential all information about THAC Ltd.'s proposal(s), fee structures, fees and personnel. The client also agrees to safeguard documents and templates provided by THAC Ltd. so that they do not become available to other contractors.

5. Conflict of Interest

THAC Ltd. shall decline any third-party contract that would create a conflict of interest with the client's previously agreed instructions. Where such a conflict only becomes apparent after our agreement to act for the third party we shall invoke Clauses 6 in respect of their contract. THAC Ltd. warrants to bring to the attention of the client any conflict of interest that may arise between the client's instructions and the terms under which THAC Ltd. is acting, or has acted, for another client at the time that it becomes apparent to THAC Ltd. (where such third-party instructions were received prior to the client's instructions). The client shall then be free to vary his contract with THAC Ltd. in the light of this revelation to the extent that it is affected by the potential conflict of interest. Such a declaration by THAC Ltd. shall be general in nature, so as not to prejudice the confidentiality with the third party. THAC Ltd. shall have the right to resign its contract in such circumstances if, in its judgement, it is unable to proceed with the contract and maintain its fiduciary duty. THAC Ltd. shall receive payment in full for hours worked and expenses incurred to the date of disclosure, including all due contract stage payments but not including any entitlement to pro-rata payment for any amounts payable on completion such as performance fees or terminal payments.

6. Rights of Ownership

THAC Ltd. warrants that all personnel, whether full-time employees or not, shall be employed on terms that protect the client's intellectual property rights. Notwithstanding any payments received from the client, all rights of ownership to all materials prepared by THAC Ltd., whether written or not, shall remain the property of THAC Ltd. Copyright and distribution rights are reserved by THAC Ltd. at its sole discretion, except where these rights are explicitly stated in writing to have been waived or where the contract between THAC Ltd. and the client explicitly so provides or where the material is so endorsed by THAC Ltd. THAC Ltd. grants the right, without prejudice to its position under the previous paragraph, to the client to copy freely any material provided by THAC Ltd. as part of work wholly commissioned by the client provided that distribution of these copies is exclusively within the client's particular organisation. This clause shall apply to all reports, including the final client report, and all presentation materials. The right to distribute copies of THAC Ltd. material internally within the Client's organisation does not extend to multi-client and off the shelf market research reports which have been bought from THAC Ltd. Additional copies of such reports for internal distribution are available, at the time of purchase or later, at greatly reduced cost. The client's interests in respect of this clause and any materials provided by the client to THAC Ltd. are protected by THAC Ltd.'s blanket confidentiality commitment in respect of the dissemination of all materials related specifically to the client's affairs outlined above.

7. Time Basis for Contracts

Where applicable, activity time may be calculated inclusive of travel time from the prior non-client activity (such as from the consultant's home, office, or third party premises). The unit of activity is normally the day (9am to 5pm including a break for lunch), except where otherwise agreed in advance. Where the unit of activity is by the hour, all travel, office, administrative, preparatory, production and telephone time in addition to actual client meetings and external interviews, are chargeable at the agreed hourly rate for the individual concerned. Quotations are based on visiting sites during non-rush hour periods (between 10am and 3pm) If there is a specific requirement to visit during the rush hour period (between 7-10am and 3-6pm), any extra time spent travelling will be charged in half hour increments at the going rate.

8. Fees

The remuneration structure agreed between the client and THAC Ltd. may be based on several methods. These are a 'retainer', a 'fixed fee', a 'time based rate' (e.g. day rate, also known as a per diem fee, or an hourly rate), and a 'success fee'. The client agrees to pay THAC Ltd. according to the fee structure outlined in the quotation, as amended by subsequent written correspondence.

Amendments to reports will be charged in half hour increments at the going rate. If a site visit is arranged and there is subsequently trouble accessing the property, any time wasted will be charged in half hour increments at the going rate. If, after a site visit, a tree report is not required, the time spent arranging the site visit; travelling to and from the site; and the time spent on-site will be charged in half hour increments at the going rate. Quotes are based on being supplied with a clear block plan showing the site boundaries, a 'north' arrow, a scale bar and an outline of the existing and proposed buildings. If this information is not provided, the time spent collecting / preparing this information will be charged in half hour increments at the going rate.

9. Cancellation Rights

The contract shall be regarded as a whole unless there are break points within it agreed in advance or it is divided into stages or where it is subject to periodic renewal. Where no such division is agreed in advance and stipulated in the contract, the client shall be liable for the totality of the value of the contract, including all expenses incurred to the date of cancellation, whether or not the client wishes the work to be completed. If a consultancy contract is expected to be for an extended period or to have phases contingent upon the results of earlier work, it shall normally be divided into stages or subject to periodic renewal. Where such divisions apply, either party may choose not to continue the contract into the next phase without penalty (unless otherwise provided in the specific contract). Where such cancellation is by THAC Ltd. the client shall be entitled to a refund of that proportion of any advance of fees that relate to the remaining part of the contract. Where the client cancels, the client shall pay for all stages of the contract that have been commenced. Should he choose not to have work completed on the stage underway prior to cancellation he remains liable for payment in full of this stage. The client also agrees to pay all expenses incurred, whether or not these relate to the stages cancelled or to any prior stages. Specific terms apply to cancellation in the event of a conflict of interest, client insolvency, illegal activities or force majeure. In the event of cancellation, expenses incurred referred to in this clause shall be interpreted as including all monies spent on behalf of the client plus all spending irrevocably committed to on the client's behalf by THAC Ltd. up to the date of cancellation plus any cancellation charges that may be levied by third party suppliers as a result of the contract cancellation. The client agrees that cancellation of arranged dates or projects shall incur cost penalties as follows:

Cancellation with less than 10 working days' notice – 20% of the arranged fee shall be charged. Cancellation with less than 5 working days' notice – 50% of the arranged fee shall be charged. Cancellation without notice or incidents of non-attendance – 100% of the arranged fee shall be charged.

10. Payment Terms

The client agrees to be bound by the payment terms specified at the time of the initial order. If the client fails to make any final payment without giving notification of due cause, then THAC Ltd. shall withhold delivery of any final reports and shall not be responsible for any inconvenience, loss or damage so caused. In respect of any delays in interim payments attention is drawn to the clauses. The client's responsibility is for payment to THAC Ltd. of the full amount agreed. The client agrees to adjust all payments to take into account any charges levied (such as may be made by the transferring bank), such that the full amount is received by THAC Ltd. The client accepts that THAC Ltd. shall be entitled to recover all deducted amounts. The client agrees to make payment by the method stipulated in the contract to the location stipulated in the contract. THAC Ltd. shall be entitled to recover any costs caused by any client variations in this respect not agreed in advance. THAC Ltd. shall be entitled to charge interest in line with the late payment of commercial debts (interest) act 1998 at 8% over base rate on all amounts that remain unpaid after the agreed payment date. In the absence of any other agreed payment terms, all invoices shall be due for payment within 30 days of the date of the invoice. Any invoice outstanding beyond this period shall be referred to the small claims court.

In summary, payment is due 30 days from the invoice date. After 30 days, a late fee (£40) will be added and a 2nd invoice is issued. Payment, for the 2nd invoice, is due 30 days from the 2nd invoice date. If payment, for the 2nd invoice, is not received within 30 days, a 2nd late fee (£40) will be added and payment will be sought through the small claims court (who will add further fees). These surcharges together with all other charges and legal fees incurred shall be the responsibility of the client and shall be legally enforceable.

11. Stage Payments

Most contracts that extend across several months provide for stage payments. These are negotiated in advance as part of the normal discussions prior to agreement of the contract. THAC Ltd. shall have the right to suspend all work on behalf of the client should these payments not be made on time to the agreed schedule. Any adverse impact that this suspension has upon the completion schedule or the quality of the product for the client shall be at the client's sole responsibility. This right applies not just to the contract in arrears but also any other contracts with the client, whether or not payments against these contracts are in arrears. Clients should note that where it has been agreed that payment of all or part of a contract is to be made 'in advance' work shall not commence on the client's behalf until payment is received.

If there are delays between the site visit and the receipt of the final plan(s), an invoice for half of the agreed fee will be sent 30 days after the site visit. The outstanding balance will then be invoiced after the final plan(s) have been provided and the report prepared.

12. Liability for Advice Given

THAC Ltd. provides information, advice and services in good faith based upon information available at the time. We do not warrant the accuracy of information provided. It is for the client to decide whether or not to accept our advice in making his own management decision/s. We advise that any data critical to a decision should be independently verified prior to being acted upon. Therefore THAC Ltd. accepts no liability for the consequences of its information opinions and advice whether direct or indirect.

13. Publicity

THAC Ltd. shall have the right, without further reference to the client, to publicise the fact that the client is, or was, a client and to utilise the client's name in publicity materials in this respect. THAC Ltd. may also describe in general terms the type of work conducted for the client, but shall not link the two without the prior permission of the client. Wherever the results of any commissioned work are cited by the client, the client agrees to make due reference to THAC Ltd. so as to make it clear who carried out the work, except where THAC Ltd. explicitly waives this right. This provision is notwithstanding the over-riding position over ownership of said product (outlined in Clause 6, Rights of Ownership, above). The Client may not publicise his relationship with THAC Ltd. or use any part of the THAC Ltd. brand (or imagery deliberately intended to be similar in appearance) without the express permission of THAC Ltd.

14. Insolvency

THAC Ltd. shall have the right to discontinue immediately all work for the client should he or another person petition for his bankruptcy, or he be declared insolvent, or he be placed into administrative receivership or be generally unable to pay his bills as they become due. In these circumstances THAC Ltd. shall also be entitled to have a general lien on all goods and property of the client that is within THAC Ltd.'s possession and, following 14 days' notice to dispose of such goods and property in such manner and at such prices as THAC Ltd. thinks fit and to apply the proceeds towards such debts.

15. Illegal activities

THAC Ltd. shall not carry out any illegal activities on behalf of the client. Any requirement in this respect shall nullify this contract in respect of performance and THAC Ltd. shall be entitled to recover in full its fee and expenses. The client agrees not to make any illegal use of any information provided by THAC Ltd. Neither party shall be liable to the other for any indirect, special or consequential damages.

16. Limitation of liability

Without prejudice to other more restrictive limitations elsewhere in this contract, liability on the part of THAC Ltd. is limited to the value of the contract with the client or the value of the loss whichever is the smaller. THAC Ltd. accepts no liability for the consequences of its information, opinions and advice, whether direct or indirect.

17. Force Majeure

Whilst THAC Ltd. agrees to use its best endeavours to perform the contract for the client as specified and shall not be responsible for any delays or failure to complete the contract which are beyond its control and which could not have been reasonably predicted. Where the delay caused by third party events outside either party's control or influence causes such delay that the purpose of the contract is wholly or significantly destroyed, either party shall be entitled in these circumstances to cancel the remaining portion of the contract. In such circumstances the client shall not make any further payments of fees but there shall be no refund of payments already made (including any payments for that part of the contract that remains unfulfilled) and THAC Ltd. shall be entitled to recover any costs already incurred.

18. Jurisdiction

Any disputes or claims shall be governed by and construed in accordance with English law and the jurisdiction of the English courts.

19. Arbitration

All unresolved disputes between the parties shall be referred to arbitration before a single arbitrator to be appointed, in default of agreement otherwise. Both parties also agree that all disputes arising with respect to this contract shall be arbitrated upon within the English legal system.

20. Waiver

The failure by either party to enforce at any time or for any period any one or more of the terms and conditions of this agreement shall not be a waiver of them or of the right at any time subsequently to enforce all terms and conditions of this agreement.

21. Integral part of contract

The client agrees that all of the above terms form part of the contract between THAC Ltd. and the client, except where explicitly excluded or modified by a contract and shall take precedence over and shall not be varied by any other means including any terms or conditions that the client may from time to time apply to suppliers. The client agrees to inform THAC Ltd. in writing within ten days of the delivery of service of any points or issues that may influence the payment of invoices when presented. The client appointing THAC Ltd. by verbal contract accepts that all of these terms have been read, understood and agreed.